

The Solar Photovoltaics, Systems, Devices and Components Goods (Requirements for Compulsory Registration) Order, 2017

Source: <https://indiankanoon.org/doc/24930461/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

0

]

Union of India - Act

The Solar Photovoltaics, Systems, Devices and Components Goods (Requirements for Compulsory Registration) Order, 2017

UNION OF INDIA

India

The Solar Photovoltaics, Systems, Devices and Components Goods (Requirements for Compulsory Registration) Order, 2017

Rule

THE-SOLAR-PHOTOVOLTAICS-SYSTEMS-DEVICES-AND-COMPONENTS-GOODS-REQUIREMENTS-FOR-COMPULSORY-REGISTRATION-ORDER-2017 of 2017

Published on 30 August 2017

Commenced on 30 August 2017

[This is the version of this document from 30 August 2017.]

[Note: The original publication document is not available and this content could not be verified.]

The Solar Photovoltaics, Systems, Devices and Components Goods (Requirements for Compulsory Registration) Order, 2017

Published vide Notification No. S.O. 2920(E), dated 30.8.2017

S.O. 2920(E). - In exercise of the powers conferred by clause (p) of sub section (1) of section 10 of the Bureau of Indian Standards Act, 1986 (63 of 1986) and in pursuance of clause (fa) of rule 13 of the Bureau of Indian Standards Rules,

1987, the Central Government, after consulting the Bureau of Indian Standards, hereby makes the following Order, namely:-

1.

Short title and commencement.

(1)

This Order may be called the Solar Photovoltaics, Systems, Devices and Components Goods (Requirements for Compulsory Registration) Order, 2017.

(2)

It shall come into force on the expiry of one year from the date of its publication in the Official Gazette.

2.

Definitions.

(1)

In this Order, unless the context otherwise requires -

(a)

"Act" means the Bureau of Indian Standards Act, 1986 (63 of 1986);

(b)

"Appropriate Authority" means any officer, not below the rank of Director or Scientist 'F', of the Ministry of New and Renewable Energy or its sub-ordinate or attached offices, authorised by the Secretary, Ministry of New and Renewable Energy, Government of India;

(c)

"Goods" means the Solar Photovoltaics Systems, Devices or Components goods specified in the column (2) of the Schedule;

(d)

"Rules" means the Bureau of Indian Standards Rules, 1987;

(e)

"Schedule" means the Schedule annexed to this Order;

(f)

"Series of products" means the products of the same family but varying in sizes or rating or construction;

(g)

"Specified Standard" in relation to Goods means the Indian Standard as specified in column (3) of the Schedule.

(h)

"Standard Mark" means the Bureau of Indian Standards Certification Mark as specified by the Bureau to represent a particular Indian Standard.

(2)

Words and expressions used herein and not defined but defined in the Act and the rules made there under, shall have the meanings respectively assigned to them in the Act and those rules.

3.

Prohibition regarding manufacture, storage, sale, distribution, etc. of Goods.

(1)

Any manufacturer, who manufactures, stores for sale, sells or distributes Goods shall make an application to the Bureau for obtaining registration for use of the Standard Mark in respect of the Indian Standard mentioned in column (3) of the Schedule.

(2)

The grant of registration by the Bureau shall be as per the provisions of the Act and Rules and Regulations made thereunder.

(3)

No person shall by himself or through any person on his behalf manufacture or store for sale, import, sell or distribute Goods which do not conform to the Specified Standard and do not bear the Standard Mark as notified by the Bureau for such Goods from time to time after obtaining registration from the Bureau:

Provided that nothing in this Order shall apply in relation to manufacture of Goods meant for export.

(4)

The substandard or defective Goods which do not conform to the Specified Standard mentioned in column (3) of the Schedule shall be deformed beyond use and disposed of as a scrap by the manufacturer or the representative of overseas manufacturer from liaison office or branch office located in India or by any agency authorised by the manufacturer as its authorised representative in the India:

Provided that unclaimed consignment of such Goods shall be deformed and disposed of as scrap by such department or agency as may be authorised by the Appropriate Authority.

4.

Power to call for information, etc.

(1)

The Appropriate Authority or a person authorised by it may, with a view to secure compliance with this Order, require any person engaged in the manufacture, storage for sale, sale or distribution of any Goods to give such information as the said Authority deems necessary relating to the manufacture, storage for sale, import, sale or distribution of any Goods or require any such person to furnish to it samples of Goods.

(2)

With the specific order each time of an Authority at an appropriate senior level nominated by the Secretary in the Ministry of New and Renewable Energy, the Appropriate Authority or person authorised by it, with a view to secure compliance with this Order may also-

(a)

inspect or cause to be inspected any books or other document and other Goods or the components or materials of any Goods kept by or belonging to or in the possession or under the control of any person engaged in the manufacture, storage for sale, import, sale or distribution of Goods;

(b)

entry and search any premises and seize Goods in respect of which it has reason to believe that a contravention of this order has been committed or the said Goods are not complying to the specified standard.

(3)

The provisions of the Code of Criminal Procedure, 1973 (2 of 1974) relating to search and seizure shall so far as may be, apply to searches and seizures under this paragraph.

5.

Drawing and testing of sample.

(1)

Where the Goods have different sizes, ratings, varieties, etc., such Goods shall be grouped and may be granted series approval for a Series of products based on testing of representative models.

(2)

A decision concerning series approval shall be taken by the Ministry of New and Renewable Energy or its authorised agencies while implementing this order.

(3)

The sample of Goods of the registered user shall be drawn from his manufacturing unit or from the market by the Appropriate Authority or person authorised by it for ascertaining whether they conform to the Specified Standard:

Provided that if required, samples may also be drawn by the Bureau or its authorised representatives.

(4)

The samples shall be drawn at least once in two years for a product or Series of products covered under the scope of registration granted.

(5)

The location and the product to be picked up shall be selected randomly.

(6)

At least one sample from the range of products covered in the scope of registration granted shall be picked up for testing.

(7)

The sample so drawn shall be properly sealed to protect it from any damage and labelled indicating the registration number, the date of the drawl of sample, the source of the market sample or manufacturing unit sample, a three-letter code of the person drawing the sample and the identification number, if any, given on the Goods:

Provided that where the sample drawn from the manufacturing unit, in addition to the sample to be sent for testing, another sample from the same batch or lot shall also be drawn, sealed and labelled, and left with the registered user as a counter sample, for use in case of any subsequent dispute.

(8)

The sample so drawn, sealed and labelled, shall be sent by the Appropriate Authority or person authorised by it for testing to a laboratory established or recognised by the Bureau along with a request indicating that the sample shall be tested with respect to all the requirements of the Specified Standard and the test report shall be sent to the Appropriate Authority.

(9)

All the test report shall be scrutinised for conformity of the sample with respect to the requirements of the Specified Standard.

(10)

The test report of the conforming sample shall be retained by the Appropriate Authority and the test report of the non-conforming sample shall be sent to the Bureau by Appropriate Authority within a fortnight for further action.

(11)

The Appropriate Authority shall also make available the information regarding the status of processing on its website.

6.

Power to issue directions to manufacturers.

- The Appropriate Authority may issue such directions to manufactures, consistent with the provisions of the Act, Rules and this Order, as may be necessary, for carrying out the purposes of this Order.

7.

Compliance of directions.

- Every manufacturer to whom any direction is issued under this Order shall comply with such direction.

8.

Obligation to furnish information.

- No manufacturer shall refuse to give any information lawfully demanded from him under paragraph 4 or conceal, destroy, mutilate or deface any book or document relating thereto in his possession or control.

Schedule

Sl. No.

Product

Indian Standard Number

Title of Indian Standard

(1)

(2)

(3)

(4)

1.

Crystalline Silicon Terrestrial Photovoltaic

(PV) modules (Si wafer based)

IS 14286

Crystalline Silicon Terrestrial Photovoltaic

(PV) modules - Design Qualification And Type Approval

2.

Thin-Film Terrestrial Photovoltaic (PV) Modules

(a-Si, CiGs and CdTe)

IS 16077

Thin-Film Terrestrial Photovoltaic (PV) Modules

- Design Qualification and Type Approval

3.

PV Module (Si wafer and Thin film)

IS/IEC 61730 (Part 1)

IS/IEC 61730 (Part 2)

Photovoltaic (PV)

Module Safety Qualification Part 1 Requirements for Construction

Photovoltaic (PV) Module Safety Qualification

Part 2 Requirements for Testing

4.

Power converters for use in photovoltaic power system

IS 16221 (Part 1)

IS 16221 (Part 2)

Safety of Power

Converters for use in Photovoltaic Power Systems Part 1- General Requirements

Safety of Power Converters for Use in

Photovoltaic Power Systems Part 2-Particular Requirements for Inverters

5.

Utility -Interconnected Photovoltaic inverters

IS 16169

Test Procedure of Islanding Prevention Measures for Utility-Interconnected Photovoltaic Inverters

6.

Storage battery

IS 16270

Secondary Cells and Batteries for Solar

Photovoltaic Application General-Requirements and Methods of Test

Related AI tags, queries and research notes

Translation